

25STCV34972 25STCV34972

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-09

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Case Number: 25STCV34972 Hearing Date: September 9, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 11:56 AM on September 8, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 8, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

is a Lemon Law action.

Defendant

American Honda Motor Co., Inc. moves to strike portions of the Complaint.

TENTATIVE RULING

Defendant

American Honda Motor Co., Inc.'s motion to strike portions of the Complaint is DENIED as untimely.

"Any party, within the time allowed

to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions

specified in subdivision (e) [motion for judgment on the pleadings]." (Code Civ. Proc., § 435(b)(1).) "A person against whom a complaint .

. . has been filed may, within 30 days after service of the complaint . . . ,

demur to the complaint" (Civ. Proc. § 430.40(a).) " A party

objecting to a complaint or cross-complaint may demur and answer at the same time." (Civ. Proc. Code, § 430.30(c).)

The Complaint was filed and personally served

upon Defendant on December 9, 2025. Defendant was required to respond to the Complaint on January 8, 2026. Defendant filed an untimely answer on March 27, 2026. Defendant subsequently filed this motion to strike on April 2, 2026. As such, this motion to strike is DENIED as untimely.

Moreover, on September 3, 2026, the Court

granted Defendant's motion for judgment on the pleadings as to the Complaint as to all causes or action with leave to amend. Defendant may bring a timely motion to strike as to the amended complaint.